

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Filed:

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RAMON RODRIGUEZ,

Index No.

Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JAMES TOBIN, POLICE OFFICER SHAWN
MORRIS and JOHN DOES 1 TO 5,

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your Answer, or if the complaint is not served with the summons, to serve a notice of appearance on plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of service, (or within thirty (30) days after service is complete, if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you by default for the relief demanded hereto.

Dated: New York, New York
June **16**, 2018 Yours, etc.

 /S/
Chukwuemeka Nwokoro
Nwokoro & Scola, Esquires.
Attorneys for the Plaintiff
30 Broad Street, Suite 1424
New York, NY 10004
(212) 785-1060

DEFENDANTS ADDRESS:

Corporation Counsel of the City
Of New York
100 Church Street
New York, NY 10007

Police Officer Shawn Morris
New York City Police Department
47th Precinct
4111 Laconia Avenue
Bronx, NY 10466

Police Officer James Tobin
New York City Police Department
52nd Precinct
3016 Webster Avenue
Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Filed:

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RAMON RODRIGUEZ,

Index No.

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JAMES TOBIN, POLICE OFFICER SHAWN
MORRIS and JOHN DOES 1 TO 5,

Defendants.

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Plaintiff, RAMON RODRIGUEZ, by his attorneys, NWOKORO & SCOLA, ESQUIRES,
respectfully alleges upon information and belief as follows:

1. At all times mentioned, Plaintiff Ramon Rodriguez was a resident of Bronx County, City and State of New York.
2. At all times mentioned, the CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. Upon information and belief, at all times mentioned, Defendants Tobin and Morris were police officers of the Defendant City of New York employed by the New York City Police Department (NYPD) and at all times herein was acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

FACTS

4. On July 3, 2016, at approximately 7:05 p.m., plaintiff, Ramon Rodriguez, was in a taxi along with Michael Sanchez, Edwin Almonte and David Paniagua, being driven down Bainbridge Avenue in the Bronx when the taxi was pulled over by defendant James Tobin and three other police officers in an unmarked police vehicle.
5. The police officers approached the taxi with guns drawn and warned the occupants not to move. Mr. Rodriguez and the others complied.
6. The police officers then pulled Ramon Rodriguez out of the vehicle and searched him intimately in public, including touching his private organs and buttocks, through his clothes. This search did not produce any narcotics or other contraband.
7. One of the other occupants and the driver of the vehicle, David Paniagua was also searched and a bag of marijuana was found on his person.
8. Defendant Tobin and the other police officers falsely and maliciously decided to charge the plaintiff with possession of the marijuana found on David Paniagua.
9. Plaintiff was restrained, handcuffed and placed in the back of a police vehicle, while Officer Tobin referred to the plaintiff as "a piece of shit".

At no time did the plaintiff offer any physical resistance to the police officers or resist arrest.

10. Plaintiff was then driven to the 52nd Precinct. During this drive, Tobin and the other police officers profanely teased the plaintiff and made fun of him saying among other things, "tell your lawyer and your private investigator to suck my dick".
11. At the 52nd Precinct, the plaintiff was subjected to a degrading strip search. He was taken to the bathroom, told to get naked, and then forced to squat and open his butt cheeks whereupon the defendant officers knelt and looked into his anus.
12. While the plaintiff was getting dressed after the strip search, defendant Tobin and another police officer conversed in the plaintiff's presence about how "fucking stupid" the plaintiff was.
13. Plaintiff was then taken to a very dirty cell with blood on the walls and bugs crawling around and left there for approximately eight hours without any food. After about eight hours, plaintiff was removed from the cell and taken to Central Booking.
14. At some point during this detention, defendant Tobin arrested the plaintiff and falsely charged him with possession of marijuana and resisting arrest.
15. That while plaintiff was being detained, defendant Tobin completed arrest paperwork, in which he falsely swore that plaintiff had

committed the offenses of unlawful possession of marijuana, criminal possession of marijuana and resisting arrest.

16. That the factual claims made by Officer Tobin were materially false and the defendant Tobin knew it to be materially false at the time he first made it, and every time thereafter, when he repeated it.
17. That defendant Tobin, forwarded these false allegations to the Bronx County District Attorney (BCDA) in order to justify the arrest and to persuade the BCDA to commence the plaintiff's criminal prosecution.
18. That as a direct result of these false allegations by the defendant police officers, the plaintiff was criminally charged in the Criminal Court of the City of New York, Bronx County, under Docket Number 2016 BX 028908 with the crimes of resisting arrest, criminal possession of marijuana and unlawful possession of marijuana.
19. The arrest of the plaintiff on or about July 3, 2016, was without probable cause.
20. The arrest of the plaintiff on or about July 3, 2016 was motivated by malice and a desire on the part of the defendant police officers to injure the plaintiff and to increase by unlawful and underhanded means, the number of arrests credited to the defendants, as a way of advancing their careers as police officers.

21. That at no time prior to or during the above events was there probable cause to arrest the plaintiff, nor was it reasonable for the defendants to believe that probable cause existed.
22. Defendant Tobin intentionally and deliberately gave false statements and/or failed to file accurate or corrective statements.
23. That on or about February 14, 2018, after multiple court appearances, all criminal charges against the plaintiff, stemming from the arrest of July 3, 2016, were dismissed without trial.
24. On or about October 5, 2016, at approximately 12:25 a.m., plaintiff was driving on Gunhill Road in the Bronx when he was stopped without cause by defendant Shawn Morris.
25. When Officer Morris came to the plaintiff's driver's side window, the plaintiff attempted to place a call to his attorney. Officer Morris snatched plaintiff's phone out of his hands and then forcefully pulled the plaintiff out of his vehicle, handcuffed the plaintiff and placed him under arrest.
26. At no time during this incident did the plaintiff offer any physical resistance to Officer Morris or resist arrest.
27. Defendant Morris transported the plaintiff to 47th Precinct and placed him in a cell.
28. That while plaintiff was being detained, defendant Morris completed arrest paperwork, in which he falsely swore that plaintiff had

committed the offenses of criminal possession of a controlled substance, criminal possession of marijuana, unlawful possession of marijuana, and resisting arrest.

29. Eventually, the plaintiff was taken to Central Booking, and charged with criminal possession of a controlled substance, criminal possession of marijuana, unlawful possession of marijuana and resisting arrest, based on the false and malicious statement of defendant Morris.
30. That while plaintiff was being detained, defendant Morris completed arrest paperwork, in which he falsely swore that plaintiff had committed the offenses of unlawful possession of marijuana, criminal possession of marijuana, criminal possession of a controlled substance, and resisting arrest.
31. That the factual claims made by Officer Morris were materially false and the defendant Morris knew it to be materially false at the time he first made it, and every time thereafter, when he repeated it.
32. That defendant Morris forwarded these false allegations to the Bronx County District Attorney (BCDA) in order to justify the arrest and to persuade the BCDA to commence the plaintiff's criminal prosecution.
33. That as a direct result of these false allegations by defendant Morris, the plaintiff was criminally charged in the Criminal Court of the City of New York, Bronx County, under Docket Number 2016 BX 043392 with the crimes of resisting arrest, criminal possession of marijuana,

unlawful possession of marijuana, criminal possession of a controlled substance, and resisting arrest.

34. The arrest of the plaintiff on or about October 5, 2016, was without probable cause.
35. The arrest of the plaintiff on or about October 5, 2016 was motivated by malice and a desire on the part of the defendant police officers to injure the plaintiff and to increase by unlawful and underhanded means, the number of arrests credited to the defendants, as a way of advancing their careers as police officers.
36. That at no time prior to or during the above events was there probable cause to arrest the plaintiff, nor was it reasonable for the defendants to believe that probable cause existed.
37. Defendant Morris intentionally and deliberately gave false statements and/or failed to file accurate or corrective statements.
38. That on or about February 14, 2018, after multiple court appearances, all criminal charges against the plaintiff, stemming from the arrest of October 5, 2016, were dismissed without trial.

**FIRST CAUSE OF ACTION: AGAINST POLICE OFFICER
JAMES TOBIN, THE CITY OF NEW YORK, AND JOHN DOES 1 TO
5: RE: ARREST OF JULY 3, 2016
(False arrest/imprisonment: unlawful search and seizure
deprivation of rights in violation of the 4th and 14th
amendments, brought pursuant to 42 U.S.C. 1893)**

39. By this reference, plaintiff incorporates each and every allegation and averment set forth in the preceding paragraphs of this complaint as though fully set out herein.
40. In the arrest, detention and imprisonment of plaintiff on or about July 3, 2016, defendants, acting under color of state law, deprived the plaintiff of his right to be free from unreasonable search and seizure and arrest without probable cause or reasonable suspicion as required by the Fourth and Fourteenth Amendments, therefore, defendants are liable for violation of 42 U.S.C. Section 1983 which prohibits the deprivation under color of state law of rights secured under the United States Constitution.
41. The defendants subjected the plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments to the United States Constitution.
42. As a result of the aforesaid violation, plaintiff has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.

43. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each defendant, individually and severally.
44. The defendant officers were at all material times acting within the scope of their employment and as such, the defendant, the CITY OF NEW YORK, is vicariously liable for the defendant officers acts as described above.

SECOND CAUSE OF ACTION: AGAINST POLICE OFFICER JAMES TOBIN AND THE CITY OF NEW YORK: RE: ARREST OF JULY 3, 2016:
(Malicious Prosecution/Deprivation of Liberty in violation of the 4th and 14th amendments, brought pursuant to 42 U.S.C. 1893)

45. By this reference, plaintiff incorporates each and every preceding allegation and averment of this complaint as though fully set forth herein.
46. That defendant Tobin was directly involved in the initiation of criminal proceedings against the plaintiff.
47. That defendant Tobin lacked probable cause to initiate criminal proceedings against the plaintiff.
48. That defendant Tobin acted with malice in initiating criminal proceedings against the plaintiff.

49. That defendant Tobin was directly involved in the continuation of criminal proceedings against the plaintiff.
50. That defendant Tobin lacked probable cause in continuing criminal proceedings against the plaintiff.
51. That defendant Tobin acted with malice in continuing criminal proceedings against the plaintiff.
52. That TERRELL misrepresented and falsified evidence throughout all phases of the criminal proceeding.
53. That defendant Tobin misrepresented and falsified evidence to the prosecutors in the Bronx County District Attorney's office.
54. That defendant Tobin withheld exculpatory evidence from the prosecutors in the Bronx County District Attorney's office.
55. That defendant Tobin did not make a complete statement of facts to the prosecutors in the Bronx County District Attorney's office.
56. The arrest, imprisonment and prosecution of the plaintiff was malicious and unlawful, because plaintiff had committed no crime and there was no probable cause to believe that plaintiff had committed any crimes.
57. The defendant officers actions were intentional, unwarranted and in violation of the law. Defendant Tobin had full knowledge that the charges made before the court against the plaintiff were false and untrue.

58. By their conduct as described above, and acting under color of state law, defendants are liable to the plaintiff under 42 U.S.C. §1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.
59. As a consequence of the malicious prosecution by the defendant officers, plaintiff's suffered a significant loss of liberty, humiliation, mental anguish, depression, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against defendant Tobin individually and severally.
60. The defendant Tobin was at all material times acting within the scope of his employment and as such, the defendant, the CITY OF NEW YORK, is vicariously liable for the defendant officers acts as described above.

**THIRD CAUSE OF ACTION: AGAINST POLICE OFFICER
SHAWN MORRIS AND THE CITY OF NEW YORK, RE: ARREST
OF OCTOBER 5, 2016**

**(False arrest/imprisonment: unlawful search and seizure
deprivation of rights in violation of the 4th and 14th
amendments, brought pursuant to 42 U.S.C. 1893)**

61. By this reference, plaintiff incorporates each and every allegation and averment set forth in the preceding paragraphs of this complaint as though fully set out herein.

62. In the arrest, detention and imprisonment of plaintiff on or about October 5 2016, defendants, acting under color of state law, deprived the plaintiff of his right to be free from unreasonable search and seizure and arrest without probable cause or reasonable suspicion as required by the Fourth and Fourteenth Amendments, therefore, defendants are liable for violation of 42 U.S.C. Section 1983 which prohibits the deprivation under color of state law of rights secured under the United States Constitution.
63. The defendants subjected the plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments to the United States Constitution.
64. As a result of the aforesaid violation, plaintiff has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
65. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each defendant, individually and severally.
66. The defendant officers were at all material times acting within the scope of their employment and as such, the defendant, the CITY OF

NEW YORK, is vicariously liable for the defendant officers acts as described above.

FOURTH CAUSE OF ACTION: AGAINST POLICE OFFICER SHAWN MORRIS AND THE CITY OF NEW YORK: RE: ARREST OF OCTOBER 5, 2016:
(Malicious Prosecution/Deprivation of Liberty in violation of the 4th and 14th amendments, brought pursuant to 42 U.S.C. 1893)

67. By this reference, plaintiff incorporates each and every preceding allegation and averment of this complaint as though fully set forth herein.
68. That defendant Morris was directly involved in the initiation of criminal proceedings against the plaintiff.
69. That defendant Morris lacked probable cause to initiate criminal proceedings against the plaintiff.
70. That defendant Morris acted with malice in initiating criminal proceedings against the plaintiff.
71. That defendant Morris was directly involved in the continuation of criminal proceedings against the plaintiff.
72. That defendant Morris lacked probable cause in continuing criminal proceedings against the plaintiff.
73. That defendant Morris acted with malice in continuing criminal proceedings against the plaintiff.

74. That defendant Morris misrepresented and falsified evidence throughout all phases of the criminal proceeding.
75. That defendant Morris misrepresented and falsified evidence to the prosecutors in the Bronx County District Attorney's office.
76. That defendant Morris withheld exculpatory evidence from the prosecutors in the Bronx County District Attorney's office.
77. That defendant Morris did not make a complete statement of facts to the prosecutors in the Bronx County District Attorney's office.
78. The arrest, imprisonment and prosecution of the plaintiff was malicious and unlawful, because plaintiff had committed no crime and there was no probable cause to believe that plaintiff had committed any crimes.
79. The defendant officers actions were intentional, unwarranted and in violation of the law. Defendant Morris had full knowledge that the charges made before the court against the plaintiff were false and untrue.
80. By their conduct as described above, and acting under color of state law, defendants are liable to the plaintiff under 42 U.S.C. §1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.
81. As a consequence of the malicious prosecution by the defendant officers, plaintiff's suffered a significant loss of liberty, humiliation,

mental anguish, depression, and his constitutional rights were violated.

Plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against defendant Morris individually and severally.

82. The defendant Morris was at all material times acting within the scope of his employment and as such, the defendant, the CITY OF NEW YORK, is vicariously liable for the defendant officers acts as described above.

FIFTH CAUSE OF ACTION
(Monell Claim)

83. Plaintiff incorporates, repeats and re-alleges all of the preceding allegations of this complaint with full force and effect as though set forth at length herein. This cause of action is brought pursuant to 42 U.S.C. § 1983 for violations of the Fourth and Fourteenth Amendments to the United States Constitution. It applies to the City of New York and police officers sued in their official capacity and should be characterized as a "Monell" claim).
84. Defendants CITY OF NEW YORK has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and/or search of individuals

warrant, especially with respect to the principle and policy that the arrest should be based on probable cause.

85. The City of New York was negligent and/or deliberately indifferent by failing to implement a policy with its police department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking.
86. The City of New York is negligent or has acted with deliberate indifference due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking: Probable cause must be present before an individual such as the plaintiff herein can be arrested.
87. The City of New York is negligent or has acted with deliberate indifference due to its failure to implement a policy with its Police Department that prohibits, and punishes Police Officers for manufacturing false evidence against criminal defendants.
88. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to falsely arrest, illegally seize and search, maliciously prosecute, improperly manufacture evidence against, and suborn false testimony

against the Plaintiff, under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

89. The defendant's deliberate indifference is further evident by and through the lack of meaningful investigation and punishment of transgressors. Upon information and belief, the NYPD Internal Affairs Bureau (IAB) investigations rarely lead to administrative trials, and when they do, and the charges are somehow sustained, the punishment is minimal, thereby lacking any deterrent effect.
90. Upon information and belief, officers operated with the tacit approval of their supervisors and up the ranks, with an "ends justifying the means" mentality. This mentality includes a custom or practice of stopping, or stopping and frisking first, then establishing reasonable suspicion after the fact.
91. Police officers were rarely, if ever brought up on charges, investigated or disciplined for their over aggressive attempts to solve crimes including manufacturing evidence, and brutalizing witnesses.
92. Defendant the City of New York by its police department, acted with deliberate indifference to the need to reform their customs and practices which included as stated herein, rampant examples of constitutional violations of its citizenry, thereby lending tacit approval to the unconstitutional conduct. Upon information and belief, the City,

the police commissioner and/or the named defendants herein, were more interested in meeting "numbers" than they were safeguarding the constitutional rights of its citizens.

93. The acts of police officers who violate the civil and constitutional rights of the citizens of New York routinely go unreported by fellow police officers, not investigated by their superior officers, and consequently their acts, actions, omissions go unpunished. Failure to intervene and report is the norm, not the exception. Consequently, the acts of police officers who use excessive force, profile citizens racially, make false arrests, make false charges, falsely detain citizens and make false reports against them, make warrantless entry into the homes of citizens, etc, are condoned by other officers present, their supervisors, precinct commanders, and the police commissioner.
94. The City of New York and NYPD's tolerance for illegal and/or retaliatory arrests, leads to a systemic practice and policy wherein City officials are tolerant, both outwardly and inwardly of illegal stops, frisks, searches, seizures and quota arrests. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and "snitches" and are isolated, ostracized and often transferred, thereby perpetuating the illegal conduct of other officers.
95. There is a pervasive pattern, custom and de facto policy of the City of New York to allow its police officers to violate the constitutional rights

of citizens, as reported in the New York Daily News expose of Sunday May 19, 2013 where the Daily News reported a litany of unconstitutional actions taken by the NYPD teams of police officers that have been the subject of lawsuits and departmental hearings but resulted in virtually no reprimands to the offending officers, rather, one officer was promoted to a Lieutenant even when his actions were known to be unconstitutional.

96. The defendants subjected the plaintiff to these deprivations, either in a malicious or reckless disregard of the plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments to the United States Constitution.
97. The direct and proximate result of the Defendant's acts are that the plaintiff has suffered severe and permanent injuries of both of a physical and psychological nature, was forced to endure pain and suffering, all to his detriment.

WHEREFORE, plaintiff, RAMON RODRIGUEZ, demands judgment against the defendants, jointly and severally, in an amount of damages which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction in the amount determined upon trial of this action.

Dated: New York, New York
June **16**, 2017

_____/S/_____
Chukwuemeka Nwokoro

Nwokoro & Scola, Esquires
Attorney for the Plaintiff
30 Broad Street, Suite 1424
New York, New York 10004
(212) 785-1060

INDIVIDUAL VERIFICATION

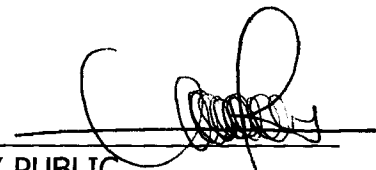
STATE OF NEW YORK)
)— SS
 COUNTY OF NEW YORK)

RAMON RODRIGUEZ, being duly sworn, deposes and says: I am the plaintiff in this action. I have read the annexed COMPLAINT and know the contents thereof and the same is true to my knowledge, except for those matters therein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

Dated: New York, New York
 June 16, 2018


 RAMON RODRIGUEZ

Sworn To Before Me on The
16th day of June, 2018


 NOTARY PUBLIC

CHUKWUEMEKA NWOKORO
 Notary Public, State of New York
 No. 02NW6044762
 Qualified in Kings County
 Certificate Filed in New York County
 Commission Expires February 01, ~~2015~~ 2019